

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400510	CASTRO VS CASTRO	MOTION TO SET ASIDE COURT ORDERS OF JUNE 5, 2026 PER CCP 473(B) AND RE-SET TRIAL DATE ON COMPLAINT FOR OTHER NON-PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF LISA K. CASTRO BY LISA K. CASTRO

Tentative Ruling:

Plaintiff's UNOPPOSED Motion to Set Aside Dismissal is granted.
Trial is set for 10/2/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500477	CAELUS CORPORATION VS ALEJANDRO	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

Defendants' Motion for Leave to Amend its Answer is denied without prejudice.

Defendants' Motion for Leave to File Cross Complaint is granted; Defendants shall have 20 days from this ruling to file its Cross Complaint.

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (CCP §473(a).) Leave to amend is liberally granted. (*Mabie v. Hyatt* (1998) 61 Cal. App. 4th 581, 596.) However, leave to amend may be denied where inexcusable delay and probable prejudice to the opposing party is shown. (*Magpali v. Farmers Group* (1996) 48 Cal. App. 4th 471, 487.)

Pursuant to Cal. Rules of Court, Rule 3.1324(a), a motion to amend a pleading before trial must include a copy of the proposed amended pleading, which must be serially numbered to differentiate it from previous pleadings and must state what allegations are to be added or deleted. (CRC 3.1324(a)(1)-(3).) The motion must also be supported by a separate declaration. The declaration must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and, (4) the reasons why the request for amendment was not made earlier. (CRC, Rule 3.1324(b)(1)-(4).)

There is a strong preference towards granting leave to amend. (*Morgan v. Sup. Ct.* (*Morgan*) (1959) 172 Cal.App.2d 527, 530.) However, leave to amend is not always granted. In *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168,